

25STCV21282 25STCV21282

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-04

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Case Number: 25STCV21282 Hearing Date: September 4, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 4, 2026 TRIAL DATE: Not set.

CASE: New Milani Group, LLC v. Dimensional Merchandising, LLC, et al.

CASE NO.: 25STC21282

APPLICATION TO APPEAR PRO HAC VICE

MOVING PARTY/PARTIES: Attorney John J. Berry

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

· Correct Address: Yes

· Served electronically on June 1, 2026 for original hearing date of December 14, 2026; advanced to this date on June 17, 2026.

CASE HISTORY:

· June 18, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Attorney John J. Berry ("Counsel") applies to be admitted pro hac vice as counsel for Cross-Defendant Empire Diversified Energy, Inc. ("Cross-Defendant").

TENTATIVE RULING:

Counsel's application to be admitted pro hac vice is GRANTED.

Moving party to give notice.

DISCUSSION:

Application to be admitted pro hac vice

Per California Rules of Court, rule 9.40, an attorney who is licensed to practice and in good standing in another state may, upon court approval, appear as counsel pro hac vice in a pending case if an active member of the State Bar of California also appears as counsel of record. (Cal. Rules of Court, rule 9.40, subd. (a).) Counsel is licensed to practice and in good standing in West Virginia, Pennsylvania, and various federal courts. Counsel resides in Pennsylvania. Counsel has not appeared pro hac vice in California in the past two years. Counsel is associated with Cross-Defendant's counsel, who is licensed to practice in California. Further, Counsel has demonstrated that Cross-Defendant served the application on the State Bar of California at its San Francisco office, and paid the \$50 fee as required. (Cal. Rules of Court, rule 9.40, subds. (c), (e).)

Accordingly, Counsel's application to be admitted pro hac vice is GRANTED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 4, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 4, 2026 TRIAL

DATE: Not set.

CASE: New Milani Group, LLC v. Dimensional

Merchandising, LLC, et al.

CASE

NO.: 25STCV21282

MOTION TO

QUASH SERVICE OF SUMMONS

MOVING PARTY/PARTIES: Cross-Defendant

Empire Diversified Energy, Inc.

RESPONDING PARTY/PARTIES: Defendant and Cross-Complainant

Dimensional Merchandising, LLC

PROOF OF SERVICE:

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Defendant addresses the merits of

Cross-Defendant's motion, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.) .

CASE HISTORY:

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July 18, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Cross-Defendant Empire Diversified

Energy, Inc. ("Empire Diversified") moves to quash service of summons. Defendant and Cross-Complainant Dimensional

Merchandising, LLC ("Defendant") opposes the motion. The Court previously considered this motion,

and, in its order of July 1, 2026, continued it to this date.

TENTATIVE RULING:

Empire

Diversified's motion to quash service of summons is CONTINUED to January 5, 2027,

8:30 am, Dept. 415.

Moving

party to give notice.

DISCUSSION:

Motion to Quash Service of Summons

Under the due process clause of the

Fourteenth Amendment to the United States Constitution, state courts may

exercise personal jurisdiction over nonresidents who have "minimum contacts"

with the forum state. Minimum contacts

exist when the relationship between the nonresident and the forum state is such

that the exercise of jurisdiction does not offend "traditional notions of fair

play and substantial justice." (International

Shoe Co. v. Washington (1945) 326 U.S. 310, 316, internal quotations

omitted.)

"Personal jurisdiction may be

either general or specific. A

nonresident defendant may be subject to the general jurisdiction of the forum

if his or her contacts in the forum state are substantial[,] continuous and systematic. In such a case, it is not necessary that the

specific cause of action alleged be connected with the defendant's business

relationship to the forum. Such a

defendant's contacts with the forum are so wide-ranging that they take the

place of physical presence in the forum as a basis for jurisdiction." (Vons Companies, Inc. v. Seabest Foods,

Inc. (1996) 14 Cal.4th 434, 445-446, internal quotations and citations

omitted.)

Even if a nonresident defendant

does not have sufficient contacts with California such that the defendant is

subject to suit in California generally, the defendant may nonetheless be

subject to jurisdiction in California for claims based on the defendant's

activities in the state. To assert

"limited" or "specific" personal jurisdiction over a nonresident defendant, the

plaintiff must demonstrate that: (a) the out-of-state defendant purposefully established contacts with the forum state; (b) the plaintiff's cause of action "arises out of" or is "related to" defendant's contacts with the forum state; and (c) the forum's exercise of personal jurisdiction in the particular case comports with "fair play and substantial justice."

(Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 477-478.)

"[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that 'minimum contacts' exist between defendant and the forum state to justify imposition of personal jurisdiction." (Elkman v. National States Ins. Co. (2009) 173 Cal.App.4th 1305, 1313.) If the plaintiff meets the initial burden, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (Buchanan v. Soto (2015) 241 Cal.App.4th 1353, 1362.)

As Empire Diversified is a Delaware corporation, Defendant bears the burden to show that Empire Diversified has minimum contacts with California that justify the Court's exercise of personal jurisdiction over Empire Diversified.

Defendant advances the declaration of Melissa Carter ("Carter"), its chief financial officer. Carter states

that Plaintiff New Milani Group ("Plaintiff") placed an order with

Defendant. Defendant inadvertently

misplaced a portion of the order in its warehouse, and failed to ship that

portion of the order to Plaintiff.

Defendant engaged Empire Diversified to destroy the goods Defendant had

misplaced, and hired Cowan Logistics to transport the goods to Empire

Diversified. Empire Diversified received

the goods at its facility in Ohio.

(Declaration of Melissa Carter, ¶¶ 2-9.)

Defendant's evidence fails to show that Empire Diversified has any

contact with California, which could justify this Court's exercise of personal

jurisdiction over Empire Diversified.

Defendant argues in opposition to the motion that Empire Diversified's

employees stole the goods and sold them on Amazon. Defendant fails to advance any evidence in

support of this contention. Defendant's

bare argument cannot meet its burden.

In opposition, Defendant requests a

continuance to conduct discovery on jurisdictional issues. The Court has discretion to grant such a

continuance. (See *HealthMarkets, Inc.*

v. Superior Court (2009) 171 Cal.App.4th 1160, 1173.) The Court considers a continuance warranted

under the circumstances of this case, as Defendant lacks knowledge of what became of the goods after delivery to Empire Diversified. The Court grants Defendant leave to propound discovery on Empire Diversified, limited to the issues of the theft of the goods and subsequent sale of the goods on Amazon. Defendant may file a supplemental opposition and Empire Diversified may file a supplemental reply, which are limited to issues pertaining to the evidence obtained in discovery. The supplemental briefings are due per the deadlines set forth in Code of Civil Procedure section 1005. Except as otherwise stated in this order, the case remains stayed as to Empire Diversified.

Accordingly,

Empire Diversified's motion to quash service of summons is CONTINUED to January 5, 2027, 8:30 am, Dept. 415.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 4, 2026 _____ Rolf

M. Treu, Judge of the Superior Court

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must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.